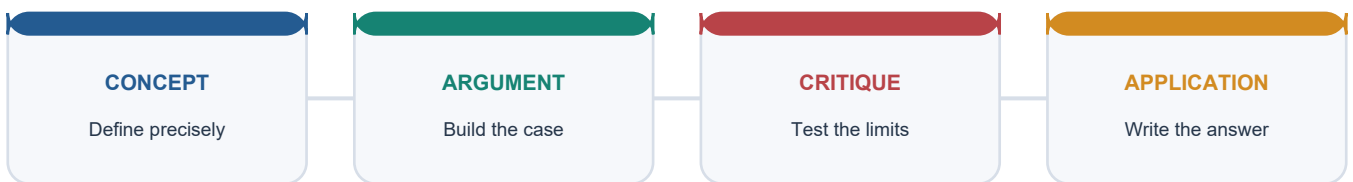


SOLVED PRACTICE WORKBOOK

Human Rights, Civil Liberties and Democratic Rights - Solved Practice Workbook

Solved practice workbook: 32 original MCQs with option-specific explanations, verified PYQ status and six original GS Mains models.

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Human Rights, Civil Liberties and Democratic Rights - Solved Practice Workbook

Subject: Political Theory **Target stages:** UPSC Prelims and General Studies Mains only **Primary ownership:** GS-II conceptual foundations **Approval:** pending explicit user approval

WORKBOOK GUIDE

- Attempt Questions 1-24 as hard core diagnostics and Questions 25-32 as remedial traps.
- Record the reason for eliminating each wrong option before reading the four option-specific explanations.
- The key is a fixed A -> B -> C -> D rotation; cover it while attempting, because the rotation is a production standard and must never replace elimination reasoning.
- For Mains, write within the stated GS ceiling: 150 words for 10 marks and 250 words for 15 marks.
- No direct owned Topic 17 Prelims/GS Mains PYQ is verified; no question owned by another UPSC paper is imported or relabelled.
- The generic 20-mark optional-style model is N/A here: Political Theory is a UPSC Prelims and General Studies Mains foundation, not an optional paper.

BASIC MCQS / REMEDIATION

Practice design

- Questions 1-24 are hard core GS/Prelims diagnostics; Questions 25-32 are remedial close-option repairs.
- Formats are deliberately varied: definition control, multi-statement, sequence, matching, chronology, elimination, application, evidence and inference.
- The correct option rotates strictly A -> B -> C -> D, repeated eight times across the 32 questions, giving 8 A, 8 B, 8 C and 8 D.
- Because the key is a fixed rotation it carries no diagnostic value: options are matched for register and length, so an answer can only be reached by reasoning about content.
- Each of the 128 options carries its own question-specific explanation and each question closes with a distinct examiner trap.

MCQ 1

Which proposition is correctly associated with **Human rights**?

- A. rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent or exhausted (PDF).
- B. Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of political trust (PDF pp.341-342, 365).
- C. a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation, not a sealed class of rights.
- D. a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against private interference.

Answer: A

Option-by-option explanation

- **A:** A States the source-recorded proposition for Human rights.
- **B:** B Attaches to Natural-rights theory, not Human rights.
- **C:** C Attaches to Negative-right dimension, not Human rights.
- **D:** D Attaches to Positive-right dimension, not Human rights.

Examiner trap: Do not identify Human rights by a neighbouring proposition merely because both occur in the same topic.

MCQ 2

Which proposition is correctly associated with **Rights**?

- A. legal protections such as expression, religion, movement, association, fair trial and personal freedom against arbitrary public power; their effective.
- B. justified normative or legal positions. Hohfeld's vocabulary distinguishes claim-rights, liberties, powers and immunities; Gauba's chapter especially.
- C. every claim-right has a correlative duty-holder, but a liberty is not itself always another person's claim-duty relation. Laski's wider rights-and-duties.
- D. personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal.

Answer: B

Option-by-option explanation

- **A:** A Attaches to Civil liberties, not Rights.
- **B:** B States the source-recorded proposition for Rights.
- **C:** C Attaches to Rights and duties, not Rights.
- **D:** D Attaches to Moral claim vs full enforceable right, not Rights.

Examiner trap: Do not identify Rights by a neighbouring proposition merely because both occur in the same topic.

MCQ 3

Which proposition is correctly associated with **Negative-right dimension**?

- A. treats rights as socially recognised conditions of moral personality and common good, not as atomistic pre-social possessions (PDF pp.342-343).
- B. challenges the grounding of abstract universal rights-talk; he does not simply argue that community overrides every individual right (PDF pp.365-366).
- C. a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation, not a sealed class of rights.
- D. a full right has a double source-development of personality and legal guarantee; either source alone yields only a quasi-right (Gauba, PDF p.345).

Answer: C

Option-by-option explanation

- **A:** A Attaches to T.H. Green, not Negative-right dimension.
- **B:** B Attaches to Alasdair MacIntyre, not Negative-right dimension.
- **C:** C States the source-recorded proposition for Negative-right dimension.
- **D:** D Attaches to Ernest Barker, not Negative-right dimension.

Examiner trap: Do not identify Negative-right dimension by a neighbouring proposition merely because both occur in the same topic.

MCQ 4

Which proposition is correctly associated with **Positive-right dimension**?

- A. participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship, age and procedural conditions (PDF pp.361-362).
- B. rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent or exhausted (PDF p.338).
- C. Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of political trust (PDF pp.341-342, 365).
- D. a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against.

Answer: D

Option-by-option explanation

- **A:** A Attaches to Democratic rights, not Positive-right dimension.
- **B:** B Attaches to Human rights, not Positive-right dimension.
- **C:** C Attaches to Natural-rights theory, not Positive-right dimension.
- **D:** D States the source-recorded proposition for Positive-right dimension.

Examiner trap: Do not identify Positive-right dimension by a neighbouring proposition merely because both occur in the same topic.

MCQ 5

Which proposition is correctly associated with **Civil liberties**?

- A. legal protections such as expression, religion, movement, association, fair trial and personal freedom against arbitrary public power; their effective.
- B. every claim-right has a correlative duty-holder, but a liberty is not itself always another person's claim-duty relation. Laski's wider rights-and-duties.
- C. restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality. "Public order" or "general."
- D. gives a social-democratic account in which rights are conditions for personality, equality and common welfare and carry social responsibilities; this is not.

Answer: A

Option-by-option explanation

- **A:** A States the source-recorded proposition for Civil liberties.
- **B:** B Attaches to Rights and duties, not Civil liberties.
- **C:** C Attaches to Restriction test, not Civil liberties.
- **D:** D Attaches to Laski, not Civil liberties.

Examiner trap: Do not identify Civil liberties by a neighbouring proposition merely because both occur in the same topic.

MCQ 6

Which proposition is correctly associated with **Democratic rights**?

- A. a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against private interference.
- B. participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship.
- C. Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of political trust (PDF pp.341-342, 365).
- D. rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent or exhausted (PDF p.338).

Answer: B

Option-by-option explanation

- **A:** A Attaches to Positive-right dimension, not Democratic rights.
- **B:** B States the source-recorded proposition for Democratic rights.
- **C:** C Attaches to Natural-rights theory, not Democratic rights.
- **D:** D Attaches to Human rights, not Democratic rights.

Examiner trap: Do not identify Democratic rights by a neighbouring proposition merely because both occur in the same topic.

MCQ 7

Which proposition is correctly associated with **Rights and duties**?

- A. restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality. "Public order" or "general.
- B. legal protections such as expression, religion, movement, association, fair trial and personal freedom against arbitrary public power; their effective.
- C. every claim-right has a correlative duty-holder, but a liberty is not itself always another person's claim-duty relation. Laski's wider rights-and-duties.
- D. gives a social-democratic account in which rights are conditions for personality, equality and common welfare and carry social responsibilities; this is not.

Answer: C

Option-by-option explanation

- **A:** A Attaches to Restriction test, not Rights and duties.
- **B:** B Attaches to Civil liberties, not Rights and duties.
- **C:** C States the source-recorded proposition for Rights and duties.
- **D:** D Attaches to Laski, not Rights and duties.

Examiner trap: Do not identify Rights and duties by a neighbouring proposition merely because both occur in the same topic.

MCQ 8

Which proposition is correctly associated with **Moral claim vs full enforceable right**?

- A. legal protections such as expression, religion, movement, association, fair trial and personal freedom against arbitrary public power; their effective.
- B. criticises the limits of bourgeois rights and the separation of formally equal political citizens from unequal civil society. Leninist theory and the records.
- C. justified normative or legal positions. Hohfeld's vocabulary distinguishes claim-rights, liberties, powers and immunities; Gauba's chapter especially.
- D. personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal.

Answer: D

Option-by-option explanation

- **A:** A Attaches to Civil liberties, not Moral claim vs full enforceable right.
- **B:** B Attaches to Marx, not Moral claim vs full enforceable right.
- **C:** C Attaches to Rights, not Moral claim vs full enforceable right.
- **D:** D States the source-recorded proposition for Moral claim vs full enforceable right.

Examiner trap: Do not identify Moral claim vs full enforceable right by a neighbouring proposition merely because both occur in the same topic.

MCQ 9

Which thinker/concept-proposition pair is correctly matched?

- A. Natural-rights theory - Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of.
- B. Human rights - a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation, not a sealed class of rights.
- C. Positive-right dimension - challenges the grounding of abstract universal rights-talk; he does not simply argue that community overrides every individual right (PDF pp.365-366).
- D. Democratic rights - a full right has a double source-development of personality and legal guarantee; either source alone yields only a quasi-right (Gauba, PDF p.345).

Answer: A

Option-by-option explanation

- **A:** A Records the association: Natural-rights theory is associated with this proposition.
- **B:** B Wrong attachment: Human rights is recorded with rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent or exhausted (PDF p.338).
- **C:** C Misplaced: Positive-right dimension is recorded with a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against private interference.
- **D:** D Belongs elsewhere: Democratic rights is recorded with participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship, age and procedural conditions (PDF pp.361-362).

Examiner trap: Keep the exact proposition attached to Natural-rights theory; nearby thinkers may address the same debate from a different mechanism.

MCQ 10

Which of the following pairs a name or concept with the proposition the source actually records for it?

- A. "Second generation" - Firestone foregrounds reproductive and sex-class power, whereas Rowbotham joins patriarchy to socialist analysis of class and labour.
- B. Legal-rights theory - Bentham treats rights as creatures of law - they exist only once the state recognizes and enforces them (PDF pp.344-345).
- C. Robert Nozick - treats rights as socially recognised conditions of moral personality and common good, not as atomistic pre-social possessions (PDF pp.342-343).
- D. Historical-rights theory - a full right has a double source-development of personality and legal guarantee; either source alone yields only a quasi-right (Gaub, PDF p.345).

Answer: B

Option-by-option explanation

- **A:** A Misplaced: "Second generation" is recorded with Social, economic and cultural rights such as work, education, health and social security (PDF pp.340-341, 361, 364-365).
- **B:** B Records the association: Legal-rights theory is associated with this proposition.
- **C:** C Belongs elsewhere: Robert Nozick is recorded with defends strong individual rights and a minimal anti-redistributive state, limited mainly to protection and enforcement (PDF p.365).
- **D:** D Cross-attached: Historical-rights theory is recorded with Burke roots rights in prescriptive inheritance and evolved constitutional practice rather than abstract declaration (PDF pp.346-347).

Examiner trap: Keep the exact proposition attached to Legal-rights theory; nearby thinkers may address the same debate from a different mechanism.

MCQ 11

In which pair does the proposition genuinely belong to the label placed against it?

- A. Firestone-Rowbotham contrast - Bentham treats rights as creatures of law - they exist only once the state recognizes and enforces them (PDF pp.344-345).
- B. Robert Nozick - a full right has a double source-development of personality and legal guarantee; either source alone yields only a quasi-right (Gaub, PDF p.345).
- C. Historical-rights theory - Burke roots rights in prescriptive inheritance and evolved constitutional practice rather than abstract declaration (PDF pp.346-347).
- D. T.H. Green - Social, economic and cultural rights such as work, education, health and social security (PDF pp.340-341, 361, 364-365).

Answer: C

Option-by-option explanation

- **A:** A Misplaced: Firestone-Rowbotham contrast is recorded with Firestone foregrounds reproductive and sex-class power, whereas Rowbotham joins patriarchy to socialist analysis of class and labour.
- **B:** B Cross-attached: Robert Nozick is recorded with defends strong individual rights and a minimal anti-redistributive state, limited mainly to protection and enforcement (PDF p.365).
- **C:** C Matches the record: Historical-rights theory is associated with this proposition.
- **D:** D Mismatched: T.H. Green is recorded with treats rights as socially recognised conditions of moral personality and common good, not as atomistic pre-social possessions (PDF pp.342-343).

Examiner trap: Keep the exact proposition attached to Historical-rights theory; nearby thinkers may address the same debate from a different mechanism.

MCQ 12

Only one pairing below reproduces the source's own association. Which is it?

- A. Restriction test - a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive.
- B. Locke - participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship.
- C. Laski - every claim-right has a correlative duty-holder, but a liberty is not itself always another person's claim-duty relation. Laski's wider rights-and-.
- D. Ideal/personality (Green, Barker) rights theory - Green ties rights to conditions needed for moral personality; Barker's full right needs both personality-.

Answer: D

Option-by-option explanation

- **A:** A Not this pair: Restriction test is recorded with restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality. "Public order" or "general welfare" is not a free-standing limitation clause for every right.
- **B:** B Cross-attached: Locke is recorded with grounds rights in life, liberty and property and permits resistance when government seriously breaches or forfeits its protective trust, not whenever it imperfectly performs a duty (PDF pp.341-342, 365).
- **C:** C Mismatched: Laski is recorded with gives a social-democratic account in which rights are conditions for personality, equality and common welfare and carry social responsibilities; this is not strict Hohfeldian correlativity (PDF pp.348-353).
- **D:** D Matches the record: Ideal/personality (Green, Barker) rights theory is associated with this proposition.

Examiner trap: Keep the exact proposition attached to Ideal/personality (Green, Barker) rights theory; nearby thinkers may address the same debate from a different mechanism.

MCQ 13

Identify the pair in which the recorded proposition matches its label exactly.

- A. Locke - grounds rights in life, liberty and property and permits resistance when government seriously breaches or forfeits its protective trust.
- B. Ideal/personality (Green, Barker) rights theory - every claim-right has a correlative duty-holder, but a liberty is not itself always another person's claim-.
- C. Laski - legal protections such as expression, religion, movement, association, fair trial and personal freedom against arbitrary public power; their.
- D. Restriction test - participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship.

Answer: A

Option-by-option explanation

- **A:** A Correct attachment: Locke is associated with this proposition.
- **B:** B Mismatched: Ideal/personality (Green, Barker) rights theory is recorded with Green ties rights to conditions needed for moral personality; Barker's full right needs both personality-grounding and legal guarantee, an either-alone yields only a quasi-right (PDF pp.342-343, 345).
- **C:** C Cross-attached: Laski is recorded with gives a social-democratic account in which rights are conditions for personality, equality and common welfare and carry social responsibilities; this is not strict Hohfeldian correlativity (PDF pp.348-353).
- **D:** D Wrong attachment: Restriction test is recorded with restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality. "Public order" or "general welfare" is not a free-standing limitation clause for every right.

Examiner trap: Keep the exact proposition attached to Locke; nearby thinkers may address the same debate from a different mechanism.

MCQ 14

Which one of the following label-proposition pairings survives a strict source check?

- A. Ernest Barker - Burke roots rights in prescriptive inheritance and evolved constitutional practice rather than abstract declaration (PDF pp.346-347).
- B. T.H. Green - treats rights as socially recognised conditions of moral personality and common good, not as atomistic pre-social possessions (PDF pp.342-343).
- C. Alasdair MacIntyre - Firestone foregrounds reproductive and sex-class power, whereas Rowbotham joins patriarchy to socialist analysis of class and labour.
- D. Negative-right dimension - defends strong individual rights and a minimal anti-redistributive state, limited mainly to protection and enforcement (PDF p.365).

Answer: B

Option-by-option explanation

- **A:** A Not this pair: Ernest Barker is recorded with a full right has a double source-development of personality and legal guarantee; either source alone yields only a quasi-right (Gaub, PDF p.345).
- **B:** B Exact pair: T.H. Green is associated with this proposition.
- **C:** C Wrong attachment: Alasdair MacIntyre is recorded with challenges the grounding of abstract universal rights-talk; he does not simply argue that community overrides every individual right (PDF pp.365-366).
- **D:** D Source disagrees: Negative-right dimension is recorded with a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation, not a sealed class of rights.

Examiner trap: Keep the exact proposition attached to T.H. Green; nearby thinkers may address the same debate from a different mechanism.

MCQ 15

Which pairing below would a careful source check leave standing?

- A. Negative-right dimension - defends strong individual rights and a minimal anti-redistributive state, limited mainly to protection and enforcement (PDF p.365).
- B. T.H. Green - Burke roots rights in prescriptive inheritance and evolved constitutional practice rather than abstract declaration (PDF pp.346-347).
- C. Ernest Barker - a full right has a double source-development of personality and legal guarantee; either source alone yields only a quasi-right (Gaub).
- D. Alasdair MacIntyre - Firestone foregrounds reproductive and sex-class power, whereas Rowbotham joins patriarchy to socialist analysis of class and labour.

Answer: C

Option-by-option explanation

- **A:** A Not this pair: Negative-right dimension is recorded with a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation, not a sealed class of rights.
- **B:** B Wrong attachment: T.H. Green is recorded with treats rights as socially recognised conditions of moral personality and common good, not as atomistic pre-social possessions (PDF pp.342-343).
- **C:** C Faithful pairing: Ernest Barker is associated with this proposition.
- **D:** D Source disagrees: Alasdair MacIntyre is recorded with challenges the grounding of abstract universal rights-talk; he does not simply argue that community overrides every individual right (PDF pp.365-366).

Examiner trap: Keep the exact proposition attached to Ernest Barker; nearby thinkers may address the same debate from a different mechanism.

MCQ 16

Which of these attributions is reproduced correctly rather than shifted to a neighbouring idea?

- A. Ideal/personality (Green, Barker) rights theory - legal protections such as expression, religion, movement, association.
- B. Locke - every claim-right has a correlative duty-holder, but a liberty is not itself always another person's claim-duty relation. Laski's wider rights-and-.
- C. Restriction test - participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship.
- D. Laski - gives a social-democratic account in which rights are conditions for personality, equality and common welfare and carry social responsibilities; this.

Answer: D

Option-by-option explanation

- **A:** A Wrong attachment: Ideal/personality (Green, Barker) rights theory is recorded with Green ties rights to conditions needed for moral personality; Barker's full right needs both personality-grounding and legal guarantee, an either-alone yields only a quasi-right (PDF pp.342-343, 345).
- **B:** B Source disagrees: Locke is recorded with grounds rights in life, liberty and property and permits resistance when government seriously breaches or forfeits its protective trust, not whenever it imperfectly performs a duty (PDF pp.341-342, 365).
- **C:** C Belongs elsewhere: Restriction test is recorded with restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality. "Public order" or "general welfare" is not a free-standing limitation clause for every right.
- **D:** D Faithful pairing: Laski is associated with this proposition.

Examiner trap: Keep the exact proposition attached to Laski; nearby thinkers may address the same debate from a different mechanism.

MCQ 17

Consider the following statements:

1. **Marx** is associated with: criticises the limits of bourgeois rights and the separation of formally equal political citizens from unequal civil society. Leninist theory and the records of particular socialist regimes are separate questions and should not be attributed back to Marx as one undifferentiated position (PDF pp.354-358, 365).
2. **Firestone-Rowbotham contrast** is associated with: restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality. "Public order" or "general welfare" is not a free-standing limitation clause for every right.

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: A

Option-by-option explanation

- **A:** A Statement 1 is correct; Statement 2 is incorrect. Therefore '1 only' is correct.
- **B:** B Statement 1 is correct; Statement 2 is incorrect. Therefore '2 only' is not the right combination.

- **C:** C Statement 1 is correct; Statement 2 is incorrect. Therefore 'Both 1 and 2' is not the right combination.
- **D:** D Statement 1 is correct; Statement 2 is incorrect. Therefore 'Neither 1 nor 2' is not the right combination.

Examiner trap: Test each statement independently; familiarity with Marx does not validate the second pairing.

MCQ 18

Consider the following statements:

1. **Robert Nozick** is associated with: Civil and political rights such as speech, movement, fair trial and voting.
2. **"First generation"** is associated with: Civil and political rights such as speech, movement, fair trial and voting.

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: B

Option-by-option explanation

- **A:** A Statement 1 is incorrect; Statement 2 is correct. Therefore '1 only' is not the right combination.
- **B:** B Statement 1 is incorrect; Statement 2 is correct. Therefore '2 only' is correct.
- **C:** C Statement 1 is incorrect; Statement 2 is correct. Therefore 'Both 1 and 2' is not the right combination.
- **D:** D Statement 1 is incorrect; Statement 2 is correct. Therefore 'Neither 1 nor 2' is not the right combination.

Examiner trap: Test each statement independently; familiarity with Robert Nozick does not validate the second pairing.

MCQ 19

Consider the following statements:

1. **Alasdair MacIntyre** is associated with: challenges the grounding of abstract universal rights-talk; he does not simply argue that community overrides every individual right (PDF pp.365-366).
2. **"Second generation"** is associated with: Social, economic and cultural rights such as work, education, health and social security (PDF pp.340-341, 361, 364-365).

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: C

Option-by-option explanation

- **A:** A Statement 1 is correct; Statement 2 is correct. Therefore '1 only' is not the right combination.
- **B:** B Statement 1 is correct; Statement 2 is correct. Therefore '2 only' is not the right combination.
- **C:** C Statement 1 is correct; Statement 2 is correct. Therefore 'Both 1 and 2' is correct.
- **D:** D Statement 1 is correct; Statement 2 is correct. Therefore 'Neither 1 nor 2' is not the right combination.

Examiner trap: Test each statement independently; familiarity with Alasdair MacIntyre does not validate the second pairing.

MCQ 20

Consider the following statements:

1. **Firestone-Rowbotham contrast** is associated with: A contested grouping of collective or solidarity claims.
2. **"Third generation"** is associated with: a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation, not a sealed class of rights.

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: D

Option-by-option explanation

- **A:** A Statement 1 is incorrect; Statement 2 is incorrect. Therefore '1 only' is not the right combination.
- **B:** B Statement 1 is incorrect; Statement 2 is incorrect. Therefore '2 only' is not the right combination.
- **C:** C Statement 1 is incorrect; Statement 2 is incorrect. Therefore 'Both 1 and 2' is not the right combination.
- **D:** D Statement 1 is incorrect; Statement 2 is incorrect. Therefore 'Neither 1 nor 2' is correct.

Examiner trap: Test each statement independently; familiarity with Firestone-Rowbotham contrast does not validate the second pairing.

MCQ 21

Consider the following statements:

1. **"First generation"** is associated with: Civil and political rights such as speech, movement, fair trial and voting.
2. **Restriction test** is associated with: a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against private interference.

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: A

Option-by-option explanation

- **A:** A Statement 1 is correct; Statement 2 is incorrect. Therefore '1 only' is correct.
- **B:** B Statement 1 is correct; Statement 2 is incorrect. Therefore '2 only' is not the right combination.
- **C:** C Statement 1 is correct; Statement 2 is incorrect. Therefore 'Both 1 and 2' is not the right combination.
- **D:** D Statement 1 is correct; Statement 2 is incorrect. Therefore 'Neither 1 nor 2' is not the right combination.

Examiner trap: Test each statement independently; familiarity with "First generation" does not validate the second pairing.

MCQ 22

Consider the following statements:

1. **"Second generation"** is associated with: rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent or exhausted (PDF p.338).
2. **Human rights** is associated with: rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent or exhausted (PDF p.338).

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: B

Option-by-option explanation

- **A:** A Statement 1 is incorrect; Statement 2 is correct. Therefore '1 only' is not the right combination.
- **B:** B Statement 1 is incorrect; Statement 2 is correct. Therefore '2 only' is correct.
- **C:** C Statement 1 is incorrect; Statement 2 is correct. Therefore 'Both 1 and 2' is not the right combination.
- **D:** D Statement 1 is incorrect; Statement 2 is correct. Therefore 'Neither 1 nor 2' is not the right combination.

Examiner trap: Test each statement independently; familiarity with "Second generation" does not validate the second pairing.

MCQ 23

Consider the following statements:

1. **"Third generation"** is associated with: A contested grouping of collective or solidarity claims.
2. **Rights** is associated with: justified normative or legal positions. Hohfeld's vocabulary distinguishes claim-rights, liberties, powers and immunities; Gauba's chapter especially emphasises claims restraining arbitrary state power and requiring conditions for a better life (PDF pp.339-340).

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: C

Option-by-option explanation

- **A:** A Statement 1 is correct; Statement 2 is correct. Therefore '1 only' is not the right combination.
- **B:** B Statement 1 is correct; Statement 2 is correct. Therefore '2 only' is not the right combination.
- **C:** C Statement 1 is correct; Statement 2 is correct. Therefore 'Both 1 and 2' is correct.
- **D:** D Statement 1 is correct; Statement 2 is correct. Therefore 'Neither 1 nor 2' is not the right combination.

Examiner trap: Test each statement independently; familiarity with "Third generation" does not validate the second pairing.

MCQ 24

Consider the following statements:

1. **Restriction test** is associated with: a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation, not a sealed class of rights.
2. **Negative-right dimension** is associated with: every claim-right has a correlative duty-holder, but a liberty is not itself always another person's claim-duty relation. Laski's wider rights-and-duties thesis is social-ethical rather than strict Hohfeldian correlativity.

Which option is correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer: D

Option-by-option explanation

- **A:** A Statement 1 is incorrect; Statement 2 is incorrect. Therefore '1 only' is not the right combination.
- **B:** B Statement 1 is incorrect; Statement 2 is incorrect. Therefore '2 only' is not the right combination.
- **C:** C Statement 1 is incorrect; Statement 2 is incorrect. Therefore 'Both 1 and 2' is not the right combination.
- **D:** D Statement 1 is incorrect; Statement 2 is incorrect. Therefore 'Neither 1 nor 2' is correct.

Examiner trap: Test each statement independently; familiarity with Restriction test does not validate the second pairing.

MCQ 25 - REMEDIAL

Which correction is most defensible for the claim: **"The UDHR is itself a domestic constitution."**?

- A. It is an international declaration and moral-legal standard, not a country's own constitution (PDF pp.358-360).
- B. Gauba explicitly includes positive rights and state responsibility in modern rights discourse (PDF pp.340-341).
- C. Gauba distinguishes them and places human rights as the widest category (PDF pp.361-363).
- D. Rights must be classified. Some permit lawful limitation; some permit emergency derogation; some are non-derogable; and a few.

Answer: A

Option-by-option explanation

- **A:** A Directly repairs the stated misconception: It is an international declaration and moral-legal standard, not a country's own constitution (PDF pp.358-360).
- **B:** B Repairs a different misconception, "Only negative liberty counts as rights.", so it does not answer the claim in the stem.
- **C:** C Repairs a different misconception, "Human rights, democratic rights and civil liberties are interchangeable.", so it does not answer the claim in the stem.
- **D:** D Repairs a different misconception, "All rights are absolute" / "No right is absolute.", so it does not answer the claim in the stem.

Examiner trap: Repair the exact overstatement about "The UDHR is itself a domestic constitution.", not a different error from the same topic.

MCQ 26 - REMEDIAL

Which correction is most defensible for the claim: **"All rights are absolute" / "No right is absolute."**?

- A. Human rights means rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent.
- B. Rights must be classified. Some permit lawful limitation; some permit emergency derogation; some are non-derogable; and a few prohibitions, such as torture.
- C. Negative-right dimension means a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation.
- D. Positive-right dimension means a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require.

Answer: B

Option-by-option explanation

- **A:** A Repairs a different misconception, 'Human rights means participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship, age and procedural conditions (PDF pp.361-362).', so it does not answer the claim in the stem.
- **B:** B Directly repairs the stated misconception: Rights must be classified. Some permit lawful limitation; some permit emergency derogation; some are non-derogable; and a few prohibitions, such as torture, are treated as absolute.
- **C:** C Repairs a different misconception, 'Negative-right dimension means personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gauba, PDF p.345).', so it does not answer the claim in the stem.
- **D:** D Repairs a different misconception, 'Positive-right dimension means Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of political trust (PDF pp.341-342, 365).', so it does not answer the claim in the stem.

Examiner trap: Repair the exact overstatement about "All rights are absolute" / "No right is absolute.", not a different error from the same topic.

MCQ 27 - REMEDIAL

Which correction is most defensible for the claim: **"Human rights, democratic rights and civil liberties are interchangeable."**?

- A. Rights must be classified. Some permit lawful limitation; some permit emergency derogation; some are non-derogable.
- B. It is an international declaration and moral-legal standard, not a country's own constitution (PDF pp.358-360).
- C. Gauba distinguishes them and places human rights as the widest category (PDF pp.361-363).
- D. Gauba explicitly includes positive rights and state responsibility in modern rights discourse (PDF pp.340-341).

Answer: C

Option-by-option explanation

- **A:** A Repairs a different misconception, "'All rights are absolute" / "No right is absolute."', so it does not answer the claim in the stem.
- **B:** B Repairs a different misconception, "'The UDHR is itself a domestic constitution."', so it does not answer the claim in the stem.
- **C:** C Directly repairs the stated misconception: Gauba distinguishes them and places human rights as the widest category (PDF pp.361-363).
- **D:** D Repairs a different misconception, "'Only negative liberty counts as rights."', so it does not answer the claim in the stem.

Examiner trap: Repair the exact overstatement about "Human rights, democratic rights and civil liberties, not a different error from the same topic.

MCQ 28 - REMEDIAL

Which correction is most defensible for the claim: **"Only negative liberty counts as rights."**?

- A. Rights must be classified. Some permit lawful limitation; some permit emergency derogation; some are non-derogable; and a few.
- B. It is an international declaration and moral-legal standard, not a country's own constitution (PDF pp.358-360).
- C. Gauba distinguishes them and places human rights as the widest category (PDF pp.361-363).
- D. Gauba explicitly includes positive rights and state responsibility in modern rights discourse (PDF pp.340-341).

Answer: D

Option-by-option explanation

- **A:** A Repairs a different misconception, "All rights are absolute" / "No right is absolute.", so it does not answer the claim in the stem.
- **B:** B Repairs a different misconception, "The UDHR is itself a domestic constitution.", so it does not answer the claim in the stem.
- **C:** C Repairs a different misconception, "Human rights, democratic rights and civil liberties are interchangeable.", so it does not answer the claim in the stem.
- **D:** D Directly repairs the stated misconception: Gauba explicitly includes positive rights and state responsibility in modern rights discourse (PDF pp.340-341).

Examiner trap: Repair the exact overstatement about "Only negative liberty counts as rights.", not a different error from the same topic.

MCQ 29 - REMEDIAL

Which correction is most defensible for the claim: **Human rights means participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship, age and procedural conditions (PDF pp.361-362).**?

- A. Human rights means rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent.
- B. Negative-right dimension means a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation.
- C. Rights must be classified. Some permit lawful limitation; some permit emergency derogation; some are non-derogable; and a few prohibitions, such as torture.
- D. Positive-right dimension means a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require.

Answer: A

Option-by-option explanation

- **A:** A Directly repairs the stated misconception: Human rights means rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent or exhausted (PDF p.338).
- **B:** B Repairs a different misconception, 'Negative-right dimension means personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gauba, PDF p.345).', so it does not answer the claim in the stem.
- **C:** C Repairs a different misconception, "All rights are absolute" / "No right is absolute.", so it does not answer the claim in the stem.

- **D:** D Repairs a different misconception, 'Positive-right dimension means Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of political trust (PDF pp.341-342, 365).', so it does not answer the claim in the stem.

Examiner trap: Repair the exact overstatement about Human rights means participation rights enabling, not a different error from the same topic.

MCQ 30 - REMEDIAL

Which correction is most defensible for the claim: **Rights means every claim-right has a correlative duty-holder, but a liberty is not itself always another person's claim-duty relation. Laski's wider rights-and-duties thesis is social-ethical rather than strict Hohfeldian correlativity.**?

- A. Negative-right dimension means a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation.
- B. Rights means justified normative or legal positions. Hohfeld's vocabulary distinguishes claim-rights, liberties.
- C. Positive-right dimension means a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require.
- D. Human rights means rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent.

Answer: B

Option-by-option explanation

- **A:** A Repairs a different misconception, 'Negative-right dimension means personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gaub, PDF p.345).', so it does not answer the claim in the stem.
- **B:** B Directly repairs the stated misconception: Rights means justified normative or legal positions. Hohfeld's vocabulary distinguishes claim-rights, liberties, powers and immunities; Gaub's chapter especially emphasises claims restraining arbitrary state power and requiring conditions for a better life (PDF pp.339-340).
- **C:** C Repairs a different misconception, 'Positive-right dimension means Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of political trust (PDF pp.341-342, 365).', so it does not answer the claim in the stem.
- **D:** D Repairs a different misconception, 'Human rights means participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship, age and procedural conditions (PDF pp.361-362).', so it does not answer the claim in the stem.

Examiner trap: Repair the exact overstatement about Rights means every claim-right has a correlative, not a different error from the same topic.

MCQ 31 - REMEDIAL

Which correction is most defensible for the claim: **Negative-right dimension means personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gaub, PDF p.345).**?

- A. Rights must be classified. Some permit lawful limitation; some permit emergency derogation; some are non-derogable; and a few prohibitions, such as torture.
- B. Human rights means rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent.
- C. Negative-right dimension means a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation.

- D. Positive-right dimension means a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require.

Answer: C

Option-by-option explanation

- **A:** A Repairs a different misconception, "All rights are absolute" / "No right is absolute.", so it does not answer the claim in the stem.
- **B:** B Repairs a different misconception, 'Human rights means participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship, age and procedural conditions (PDF pp.361-362).', so it does not answer the claim in the stem.
- **C:** C Directly repairs the stated misconception: Negative-right dimension means a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation, not a sealed class of rights.
- **D:** D Repairs a different misconception, 'Positive-right dimension means Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of political trust (PDF pp.341-342, 365).', so it does not answer the claim in the stem.

Examiner trap: Repair the exact overstatement about Negative-right dimension means personality or, not a different error from the same topic.

MCQ 32 - REMEDIAL

Which correction is most defensible for the claim: **Positive-right dimension means Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of political trust (PDF pp.341-342, 365).**?

- A. Human rights means rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent or exhausted (PDF p.338).
- B. Negative-right dimension means a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation, not a sealed class of rights.
- C. Rights must be classified. Some permit lawful limitation; some permit emergency derogation; some are non-derogable; and a few prohibitions, such as torture, are treated as absolute.
- D. Positive-right dimension means a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require.

Answer: D

Option-by-option explanation

- **A:** A Repairs a different misconception, 'Human rights means participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship, age and procedural conditions (PDF pp.361-362).', so it does not answer the claim in the stem.
- **B:** B Repairs a different misconception, 'Negative-right dimension means personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gaub, PDF p.345).', so it does not answer the claim in the stem.
- **C:** C Repairs a different misconception, "All rights are absolute" / "No right is absolute.", so it does not answer the claim in the stem.
- **D:** D Directly repairs the stated misconception: Positive-right dimension means a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against private interference.

Examiner trap: Repair the exact overstatement about Positive-right dimension means Locke grounds rights, not a different error from the same topic.

PYQS AND ANSWER PRACTICE

VERIFIED UPSC PRELIMS / GS MAINS PYQ STATUS

No direct owned UPSC Prelims or General Studies Mains PYQ is verified for **Human Rights, Civil Liberties and Democratic Rights** in the repository's routed ledgers. Political Theory is a GS/Prelims conceptual-support subject, and proxy, alias or synthetic PYQ ownership is prohibited. Questions owned by another UPSC paper are not imported. The six questions below are clearly labelled original GS Mains practice.

ORIGINAL GS MAINS PRACTICE WITH MODEL SOLUTIONS

Original GS Mains Model 1 - 10 marks

Question: Distinguish human rights, civil liberties and democratic rights. Why are they overlapping rather than hierarchically nested? Answer in 150 words.

Demand decode: the directive distinguish requires the answer to fix each side of the distinction precisely and show where it does the analytical work. Fix the boundary of human rights, civil liberties and democratic rights. Why are they overlapping rather than hierarchically nested in the opening line, carry the argument on Introduction, Human, Core and Civil, and reserve the closing sentences for the qualification that conclusion: The three categories are best distinguished by holder and primary function, yet they overlap in practice because dignified agency, legal freedom and democratic participation mutually support one another without forming one rigid hierarchy.

Model answer (144 words):

Introduction: Human rights, civil liberties and democratic rights differ in grounding and primary function, but no rigid nesting captures their practical relationship. Core analysis: Human rights attach to persons by virtue of human dignity and include civil-political as well as socio-economic and cultural claims. Civil liberties secure legal freedom against arbitrary power-speech, association, movement, religion, fair trial and personal liberty-and may extend to non-citizens. Democratic rights enable eligible citizens to vote, organise, influence decisions and seek office. The categories overlap because participation needs speech and association, while civil liberty is strengthened by accountable government. The right answer identifies holder, purpose and duty-bearer rather than assuming one universal hierarchy. Conclusion: The three categories are best distinguished by holder and primary function, yet they overlap in practice because dignified agency, legal freedom and democratic participation mutually support one another without forming one rigid hierarchy.

Why this earns marks: it obeys distinguish instead of drifting into description, attaches each claim to named evidence (Introduction, Human, Core and Civil), converts that evidence into analysis of human rights, civil liberties and democratic rights. Why are they overlapping rather than hierarchically nested, and keeps the examiner-facing qualification that conclusion: The three categories are best distinguished by holder and primary function, yet they overlap in practice because dignified agency, legal freedom and democratic participation mutually support one another without forming one rigid hierarchy. At 144 words it stays inside the 150-word GS ceiling for 10 marks.

Original GS Mains Model 2 - 10 marks

Question: Explain why negative and positive rights are better understood as dimensions of obligation. Answer in 150 words.

Demand decode: the directive explain requires the answer to set out the concept, its mechanism and its consequences in a stated order. Fix the boundary of why negative and positive rights are better understood as dimensions of obligation in the opening line, carry the argument on Introduction, Core, Speech and Treating, and reserve the closing sentences for the qualification that conclusion: Negative and positive rights identify duties of restraint and duties to protect or fulfil, but most actual rights combine both dimensions and therefore resist classification as purely one or the other.

Model answer (139 words):

Introduction: The negative-positive distinction concerns what duty-bearers must do, not two sealed kinds of rights. Core analysis: A negative dimension requires restraint: public authority must not censor lawful expression or inflict arbitrary detention. A positive dimension requires protection or provision: the state must maintain courts, protect speakers from violent suppression, investigate abuse or provide education and legal aid. The same right can therefore

generate both duties. Speech needs non-interference and an institutional order capable of protecting equal exercise; personal liberty needs non-arrest without law and effective remedies when arrest occurs. Treating all civil rights as negative and all social rights as positive hides these mixed obligation structures. Conclusion: Negative and positive rights identify duties of restraint and duties to protect or fulfil, but most actual rights combine both dimensions and therefore resist classification as purely one or the other.

Why this earns marks: it obeys explain instead of drifting into description, attaches each claim to named evidence (Introduction, Core, Speech and Treating), converts that evidence into analysis of why negative and positive rights are better understood as dimensions of obligation, and keeps the examiner-facing qualification that conclusion: Negative and positive rights identify duties of restraint and duties to protect or fulfil, but most actual rights combine both dimensions and therefore resist classification as purely one or the other. At 139 words it stays inside the 150-word GS ceiling for 10 marks.

Original GS Mains Model 3 - 10 marks

Question: Compare natural, legal, historical and personality theories of rights. Does Barker reconcile moral validity with legal guarantee? Answer in 150 words.

Demand decode: the directive compare requires the answer to run the comparison on shared axes and end with the decisive difference. Fix the boundary of natural, legal, historical and personality theories of rights. Does Barker reconcile moral validity with legal guarantee in the opening line, carry the argument on Introduction, Theories, Core and Lockean, and reserve the closing sentences for the qualification that conclusion: Barker offers the strongest bridge between moral purpose and institutional force, but legal guarantee and personality-grounding still require separate scrutiny because neither automatically proves effective or just realisation.

Model answer (136 words):

Introduction: Theories of rights disagree over whether a right derives from human nature, positive law, inherited practice or the conditions of moral personality. Core analysis: Lockean natural-rights theory gives claims moral force before state recognition, enabling criticism of unjust authority, but faces indeterminacy about content. Bentham's legal theory makes enforceability and public definition central, yet cannot by itself judge an unjust enactment. Burke's historical theory grounds rights in prescriptive inheritance and evolved institutions, offering continuity but risking protection of inherited exclusion. Green's personality theory treats rights as socially recognised conditions of moral development and common good. His synthesis is a two-part test, not proof of effective realisation. Conclusion: Barker offers the strongest bridge between moral purpose and institutional force, but legal guarantee and personality-grounding still require separate scrutiny because neither automatically proves effective or just realisation.

Why this earns marks: it obeys compare instead of drifting into description, attaches each claim to named evidence (Introduction, Theories, Core and Lockean), converts that evidence into analysis of natural, legal, historical and personality theories of rights. Does Barker reconcile moral validity with legal guarantee, and keeps the examiner-facing qualification that conclusion: Barker offers the strongest bridge between moral purpose and institutional force, but legal guarantee and personality-grounding still require separate scrutiny because neither automatically proves effective or just realisation. At 136 words it stays inside the 150-word GS ceiling for 10 marks.

Original GS Mains Model 4 - 15 marks

Question: Critically examine the generations-of-rights framework in light of the indivisibility of human rights. Answer in 250 words.

Demand decode: the directive critically examine requires the answer to test the proposition against its strongest objection before giving a verdict. Fix the boundary of examine the generations-of-rights framework in light of the indivisibility of human rights in the opening line, carry the argument on Introduction, Gauba's, Core and Second-generation, and reserve the closing sentences for the qualification that it means that rights support one another and cannot be ranked as inherently dispensable.

Model answer (180 words):

Introduction: The generations framework groups civil-political, socio-economic-cultural and solidarity claims, but it is a pedagogic device rather than a universal history or Gauba's own classification. Core analysis: The first-generation label is often associated with restraint, yet speech, fair trial and voting require courts, administration and protection.

Second-generation rights such as health, work and education involve progressive realisation but also immediate duties including non-discrimination and concrete steps. Third-generation language is especially uneven: self-determination is a binding right in common Article 1 of both Covenants, whereas development and environmental claims have different sources and enforcement paths. Anti-colonial histories also disrupt the chronology because collective self-determination sometimes preceded effective individual rights. Critical evaluation: Indivisibility does not erase differences in duty, remedy or institutional competence. It means that rights support one another and cannot be ranked as inherently dispensable. Use generations to organise content, then analyse each claim's actual legal status and obligation structure. Conclusion: The generations framework is useful only as a mnemonic: rights are historically interdependent, civil-political rights need institutions, socio-economic rights contain immediate duties, and solidarity claims possess different legal statuses.

Why this earns marks: it obeys critically examine instead of drifting into description, attaches each claim to named evidence (Introduction, Gauba's, Core and Second-generation), converts that evidence into analysis of examine the generations-of-rights framework in light of the indivisibility of human rights, and keeps the examiner-facing qualification that it means that rights support one another and cannot be ranked as inherently dispensable. At 180 words it stays inside the 250-word GS ceiling for 15 marks.

Original GS Mains Model 5 - 15 marks

Question: Evaluate Laski, Marx, Nozick, MacIntyre and feminist approaches to rights, power and common welfare. Answer in 250 words.

Demand decode: the directive evaluate requires the answer to apply a stated criterion and give a graded verdict, not a summary. Fix the boundary of laski, Marx, Nozick, MacIntyre and feminist approaches to rights, power and common welfare in the opening line, carry the argument on Introduction, Modern, Core and Laski, and reserve the closing sentences for the qualification that conclusion: These approaches reveal that rights are simultaneously protections, social conditions and contested distributions of power;.

Model answer (249 words):

Introduction: Modern rights theory divides over whether rights chiefly protect individual choice, secure social development or reproduce and challenge structures of power. Core analysis: Laski treats rights as social conditions of personality, equality and common welfare and therefore joins liberty to education, security and reciprocal responsibility. Marx exposes the limitation of formal political equality within unequal property and class relations; his critique should be separated from Leninist theory and the record of particular socialist regimes. Nozick moves in the opposite direction: strong side-constraints and entitlement support a minimal anti-redistributive state. MacIntyre questions the grounding of abstract universal rights-talk and restores traditions and practices, without proving that community may override every individual claim. Feminist theory reveals how apparently neutral rights can ignore reproductive power, unpaid labour and patriarchal institutions; Firestone and Rowbotham supply distinct radical and socialist mechanisms. Further development: The theories also imply different institutional remedies. Laski supports welfare and equal social conditions; Marx demands transformation of property and class power; Nozick restricts compulsory action to protection and rectification; MacIntyre relocates moral reasoning within traditions and practices; feminist approaches reconstruct law, family and political economy together. Comparison should therefore judge both the protected value and the power relation each remedy may create. A defensible settlement protects a universal agency floor while democratising the social conditions in which rights are exercised. Conclusion: These approaches reveal that rights are simultaneously protections, social conditions and contested distributions of power; a defensible settlement protects individual agency while exposing class, community and gender domination.

Why this earns marks: it obeys evaluate instead of drifting into description, attaches each claim to named evidence (Introduction, Modern, Core and Laski), converts that evidence into analysis of laski, Marx, Nozick, MacIntyre and feminist approaches to rights, power and common welfare, and keeps the examiner-facing qualification that conclusion: These approaches reveal that rights are simultaneously protections, social conditions and contested distributions of power;. At 249 words it stays inside the 250-word GS ceiling for 15 marks.

Original GS Mains Model 6 - 15 marks

Question: Distinguish moral validity, legal recognition, judicial enforceability and effective realization of rights with reference to the Covenants, constitutional limits, emergencies and social movements. Answer in 250 words.

Demand decode: the directive distinguish requires the answer to fix each side of the distinction precisely and show where it does the analytical work. Fix the boundary of moral validity, legal recognition, judicial enforceability and effective realization of rights with reference to the Covenants, constitutional limits, emergencies and social movements in the opening line, carry the argument on Introduction, Core, Moral and Legal, and reserve the closing sentences for the qualification that further development: This chain also explains why implementation evidence cannot be substituted for legal analysis.

Model answer (250 words):

Introduction: A right can be morally justified, legally recognised, judicially enforceable and effectively enjoyed in different degrees; these are connected but non-identical stages. Core analysis: Moral validity supplies reasons grounded in dignity or justice. Legal recognition converts a claim into positive law. Justiciability adds an institution and remedy, while effective realisation depends on access, resources, administration and social power. The UDHR is a standard, whereas the ICCPR and ICESCR bind States Parties: the former stresses immediate respect, ensure and remedy duties; the latter combines progressive realisation with immediate non-discrimination and good-faith steps. Domestic restrictions must be lawful, tied to an aim permitted for the specific right, necessary and proportionate. Emergency derogation is narrower than ordinary limitation and leaves non-derogable rights intact. Horizontal violations may require direct constitutional rules, legislation or positive protection against private actors. Further development: This chain also explains why implementation evidence cannot be substituted for legal analysis. A policy may improve access without recognising an individual entitlement, while a judicial declaration may remain ineffective when procedures, information or resources block use. Social movements connect the stages by reframing experience as an injustice, demanding recognition, testing remedies and monitoring whether institutions alter the conditions that generated the violation. Effective rights therefore require institutional plurality and public mobilisation without collapsing every moral demand into an immediately enforceable claim. Conclusion: Rights become politically real through a chain from justification to recognition, remedy and effective access; breaking any link produces aspiration without law, law without remedy or remedy without usable freedom.

Why this earns marks: it obeys distinguish instead of drifting into description, attaches each claim to named evidence (Introduction, Core, Moral and Legal), converts that evidence into analysis of moral validity, legal recognition, judicial enforceability and effective realization of rights with reference to the Covenants, constitutional limits, emergencies and social movements, and keeps the examiner-facing qualification that further development: This chain also explains why implementation evidence cannot be substituted for legal analysis. At 250 words it stays inside the 250-word GS ceiling for 15 marks.
